

Contentious Chamber

Decision on the merits 86/2024 of May 27, 2024

File number: DOS-2019-04539

Subject: Complaint regarding an unsatisfactory response to a request for access and the lack of sufficient information

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Romain Robert and Christophe Boeraeve, members;
Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant"

The defendant: Y, represented by Maîtres Marc UYTENDAELE, Patricia MINSIER, and Hélène DEBATY, hereinafter referred to as "the defendant"

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I. Facts and procedure

1. On September 8, 2019, the complainant submitted a request for mediation, which was transformed into a complaint on December 24, 2019, to the Data Protection Authority against the defendant.
2. The subject of the request concerns an unsatisfactory response to a request for access as well as a lack of sufficient information.
3. The complainant is the mother of a student who attended the defendant's school.
4. On June 1, 2019, the complainant exercised her right of access with the defendant and specifically requested: the data held by the defendant concerning the complainant and her daughter; the purposes pursued in the context of the processing of this data; and, finally, the retention period of this data. Furthermore, she requested – in the event that photos of her daughter taken during the school trip had been or would be published on Facebook – their deletion.
5. On June 2, 2019, the defendant responded, regarding the access request, that it is subject to the control of an ad hoc person and that it must refer only to this person concerning the control of personal data processing. Regarding the request concerning the photos, it responded that at the beginning of the school year, a document related to the "right to image" was submitted to the parents, binding them for the entire school year.
6. On August 26, 2019, the complainant wrote to the defendant that she was still waiting for a response. On the same day, the defendant replied that it had already responded on June 2, 2019. Still on the same day, the complainant indicated that she intended to contact the DPA regarding this matter.
7. On September 8, 2019, the complainant submitted a request for mediation to the DPA.
8. On October 3, 2019, the First Line Service declared the mediation request admissible.
9. On December 24, 2019, the complainant decided to transform her mediation request into a complaint.
10. On January 6, 2020, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.
11. On January 27, 2020, in accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation was transmitted to the Inspection Service, along with

the complaint and the inventory of documents.

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12.

On March 6, 2020, the investigation by the Inspection Service is concluded, the report is attached to the file, and it is transmitted by the Inspector General to the President of the Contentious Chamber (Article 91, § 1 and § 2 of the LCA).

The report contains findings related to the subject of the complaint and concludes that:

A. The defendant failed to comply with Articles 12.1, 15.1, and 15.3 of the GDPR in that it did not provide the complainant with all the information listed in Article 15.1 of the GDPR and also did not provide a copy of the personal data being processed;

B. The defendant failed to comply with Articles 12.1, 13, and 14 of the GDPR in that it acknowledges, through the prefect of the school in question, that the information regarding the collected data is absent from the documents to be completed and signed by the parents, as well as from its website.

13.

On September 1, 2020, the Contentious Chamber decides, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the file may be processed on the merits.

14.

On the same date, the concerned parties are informed by registered mail of the provisions as set out in Article 95, § 2 and Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for receiving the defendant's response conclusions has been set for October 13, 2020, that for the complainant's reply conclusions for November 3, 2020, and that for the defendant's rejoinder conclusions for November 24, 2020.

15.

Also on the same date, the defendant agrees to receive all communications related to the case electronically. It requests, in the same email, a copy of the file (Article 95, §2, 3° LCA), which is transmitted to it on September 4, 2020.

16.

On September 4, 2020, the complainant agrees to receive all communications related to the case electronically.

17.

On October 9, 2020, the defendant's lawyer requests a copy of the file (Article 95, §2, 3° LCA), which is transmitted to her on October 12, 2020.

18.

On October 13, 2020, the Contentious Chamber receives the response conclusions from the defendant. The defendant having submitted summary conclusions, its arguments are summarized in point 20 below.

19.

On November 10, 2020, the complainant confirms that she has not submitted any reply conclusions.

20. On November 23, 2020, the Contentious Chamber receives the summary conclusions from the defendant. These summary conclusions can be summarized as follows:

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- A response was indeed provided to the complainant, whether orally or by phone, as the written exchanges reveal only an incomplete part of the information communicated;
- The purpose pursued by the data collection carried out by the defendant has always seemed obvious to it, so it did not consider it necessary to provide further explanations;
- The defendant emphasizes that, while not denying the absence of prior information regarding the collection of medical data, it has always responded to parents' questions regarding retention and archiving periods or the identity of the recipients of data transfers;
- It has now – during the present procedure – implemented a data protection policy;
- Documents that are not legally mandatory, such as forms for school excursions, were destroyed at the end of the 2018-2019 school year, following the departure of the complainant's daughter from the defendant's institution;

- The defendant provides in annex a table established by its organizing authority that illustrates the various obligations regarding data retention that it is subject to.
- Finally, the defendant lists – for the first time since the initial contact by the complainant – the list of data concerning the complainant's daughter that it still holds and their retention period.

21.

Given the workload of the Contentious Chamber, the issuance of this decision has taken longer than expected. In light of the facts related to this case, the Chamber still considers it useful to rule on it.

II. Motivation

II.1. Regarding the breach of Articles 12.1, 15.1, and 15.3 of the GDPR

22.

It appears from the file that the complainant exercised her right of access in writing on June 1, 2019.

23.

The right of access has three components. First, under Article 15.1 of the GDPR, the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning her are being processed. Second, when personal data is being processed, the data subject has the right to obtain access to such personal data as well as to a

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series of information listed in Article 15.1. a) – h). Thirdly, under Article 15.3 of the GDPR, the data subject also has the right to obtain a copy of the personal data undergoing processing.

24. Article 12.1 of the GDPR specifies that the information provided to the data subject pursuant to Article 15.1 of the same Regulation may be communicated either in writing or by other means such as electronically.

25. The European Data Protection Board (hereinafter "EDPB") has clarified in its guidelines that the information – or the copy of the personal data – provided to the data subject within the scope of Article 15 of the GDPR must take a permanent form and thus be durable over time.

26. Article 12.1 of the GDPR further provides that the data controller may respond to the exercise of a data subject's right of access orally, provided that this is done at the initiative of the data subject and that the identity of the latter is demonstrated by other means.

27. Furthermore, Article 5.2 of the GDPR specifies that it is the responsibility of the data controller to demonstrate compliance with the fundamental principles of the GDPR set out in Article 6.1, which include the obligation of transparency and explicit purpose.

28. In the case at hand, the defendant claims to have responded to the complainant's requests by phone. The defendant specifies that these voice and telephone exchanges with the complainant should therefore be taken into account alongside the written exchanges held in the same context.

29. However, no element from the case file demonstrates that the complainant requested a response to the exercise of her right of access orally.

30. Furthermore, it should be noted that the defendant provides for the first time in its summary conclusions information about the data still in its possession, their purpose, or their retention period. Finally, it confirms itself that it did not deem it necessary to provide the purposes of processing on the grounds that they seemed obvious to it.

31. Therefore, the Contentious Chamber cannot consider that the alleged oral responses given by the defendant could compensate for the absence of a written response that emerges from the file.

32. As raised by the SI (see point 12), the Contentious Chamber notes that the defendant did not provide a complete response to the complainant's request and also did not provide a copy of the processed personal data.

1 European Data Protection Board, Guidelines 01/2022 on data subject rights – Right of access, point 150, available in English at: https://www.edpb.europa.eu/system/files/2023-04/edpb_guidelines_202201_data_subject_rights_access_v2_en.pdf.

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33. Furthermore, while the defendant repeatedly states that it has "responded" to the complainant's requests, it must be noted that this response must be relevant and include the information referred to in Article 15 of the GDPR, which it does not.

34. Finally, the fact that, as the defendant communicated to the complainant, the teachers do not have access to this information and are subject to professional secrecy does not contradict this finding.

35. Consequently, the Contentious Chamber finds that the defendant has violated Articles 12.1, 15.1, and 15.3 of the GDPR.

II.2. Regarding the breach of Articles 12.1 and 13 of the GDPR

36. The Contentious Chamber acknowledges that the defendant published, on its website, a "sheet of information regarding the collection and processing of personal data" before the start of the 2020-2021 school year.

37. The Contentious Chamber nevertheless concludes that there has been a violation of Articles 12.1 and 13 of the GDPR, on which it aligns with the opinion of the SI (see point 12).

38. Indeed, there is no debate in this case regarding the lack of prior information concerning the collection of the complainant's daughter's data – particularly regarding the retention period of health data – which is acknowledged by the defendant.

39. In this regard, the defendant states that it has always responded to parents' questions regarding retention and archiving periods as well as the identity of the recipients of these same data.

40. However, this cannot have any impact in this case. The obligation to inform is a positive obligation that falls on the data controller, and it must be fulfilled at the time of data collection when it is direct, or within one month after obtaining this data when it is indirect, unless there is communication made with the data subject based on the collected data or if the same data is communicated to another recipient, in which case the one-month period established by Article 14.3.a) may be reduced.

41. The Contentious Chamber adds that transparency is a fundamental principle of the right to the protection of personal data. It allows data subjects not only to be aware of the processing of their personal data but also, thereby, to exercise control – which may lead to certain actions being taken by the data subject if necessary.

42. It is precisely for this reason that the European legislator has sharpened the obligation to inform data subjects about the processing of their data in the GDPR.

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personal data by adding additional qualities such as conciseness, transparency, comprehensibility, and easy accessibility (see Article 12.1 of the GDPR).

43. This information is all the more crucial as it is a condition that allows the data subjects to have genuine freedom of choice in situations where they may be required to consent to the processing of their personal data².

44. Furthermore, the defendant does not invoke any of the exceptions referred to in Article 13.4 of the GDPR.

45. Moreover, it cannot be accepted under any circumstances that the apparent obviousness of a processing purpose – at least for the data controller – would relieve the data controller of its obligation to inform the data subjects. Consequently, the Contentious Chamber finds that the defendant has violated Articles 12.1 and 13 of the GDPR.

III. Corrective Measures and Sanctions

46. Under Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of the processing;
- 9° order compliance of the processing;
- 10° order the rectification, restriction, or erasure of the data and notification of such to the recipients of the data;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose fines;

13° impose administrative fines;

14° order the suspension of cross-border data flows to another State or an international organization;

2 C.J.U.E., November 11, 2020, Orange Romania SA v. National Supervisory Authority for Personal Data Processing (ANSPDCP), case C-61/19, paragraph 41.

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In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be filed within thirty days from its notification to the Market Court (Court of Appeal of Brussels), with the Data Protection Authority as the defendant.

Such an appeal may be filed by means of an interlocutory application which must contain the information listed in Article 1034ter of the Judicial Code³. The interlocutory application must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code⁴, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(sé). Hielke HIJMANS

President of the Contentious Chamber

3 The application contains, under penalty of nullity:

1° the indication of the day, month, and year;

2° the name, first name, address of the applicant, as well as, where applicable, their capacity and national register number or business number;

3° the name, first name, address, and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief statement of the grounds for the application;

5° the indication of the judge who is seized of the application;

the signature of the applicant or their lawyer.

4 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed at the registry.